

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BRIANT CONLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. MAURICE PAULEDWIN,
SHIELD NO 17495; NYPD P.O. JOHN/JANE DOES # 1-10;
all of the above individual defendants, including
named are sued in their individual and official
capacities,

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JULY 15, 2020



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway 1603
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. MAURICE PAULEDWIN
NYPD P.O. JOHN/JANE DOES # 1-10
PSA3
25 Central Avenue, Brooklyn, NY 11206

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

BRIANT CONLEY,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK; NYPD P.O. MAURICE
PAULEDWIN, SHIELD NO 17495; NYPD P.O.
JOHN/JANE DOES # 1-10; all of the above
individual defendants, including named
are sued in their individual and official
capacities,

,

Defendants.

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The Plaintiff, BRIANT CONLEY, by and through counsel
Adams & Commissiong LLP, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the United States; 42 U.S.C. §§ 1983 and 1988;
and the Fourth, Sixth, and Fourteenth Amendments to the United
States Constitution. Plaintiff's claims arise from an incident
that arose on or about July 19, 2017. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiff to, among other things,
false arrest, excessive force, assault and battery, failure to

Index No: _____

Basis of Venue:

Location of incident:
Kings County

Jury Trial Demanded

intervene, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

3. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff BRIANT CONLEY is an African American Male, a resident of the State of New York, Kings County.

5. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of

the State of New York, which violated plaintiff's rights as described herein.

6. At all times alleged herein, defendants NYPD P.O. MAURICE PAULEDWIN SHIELD NO. 17495; and NYPD P.O. JOHN/JANE DOES # 1-10, were New York City Police Officers employed with the PSA3 Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

8. On or about July 19, 2017, at and in the vicinity of 601 Park Avenue, Brooklyn, NY, several police officers operating from PSA 3, including upon information and belief, NYPD P.O. MAURICE PAULEDWIN, SHIELD NO 17495; NYPD P.O. JOHN/JANE DOES # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

9. On or July 19, 2017, at approximately 10:00 p.m., at and in the vicinity of 601 Park Avenue, Brooklyn NY, the defendants, falsely arrested plaintiff and committed excessive force on plaintiff.

10. NYPD P.O. MAURICE PAULEDWIN, SHIELD NO 17495 with NYPD P.O. JOHN DOES #1-10 stopped plaintiff and asked plaintiff to turn off a recreational vehicle.

11. The recreational vehicle was already off.

12. NYPD P.O. MAURICE PAULEDWIN SHIELD NO 17495, asked plaintiff for his ID and plaintiff complied.

13. NYPD P.O. MAURICE PAULEDWIN, SHIELD NO 17495 then punched plaintiff in the face, and threw him to the ground, and placed his knee in plaintiff's back.

14. NYPD P.O. MAURICE PAULEDWIN SHIELD NO 17495 threatened to break claimants arm.

15. NYPD P.O. MAURICE PAULEDWIN SHIELD NO 17495, along P.O. JOHN/JANE DOES #1-10, placed excessively tight handcuffs on plaintiff.

16. NYPD P.O. MAURICE PAULEDWIN SHIELD NO 17495, along P.O. JOHN/JANE DOES #1-10, then threw plaintiff in a van and took him to PSA 3 to process his arrest.

17. Those officers who witnessed this false arrest and excessive force did not intervene and did nothing to stop these unconstitutional actions.

18. Once at PSA 3, a Sergeant, after seeing plaintiff's condition, said "We fucked up, we fucked up, he needs medical attention", or words to that effect.

19. Claimant was then taken to Woodhull Hospital, for treatment.

20. While plaintiff was detained, the defendant officers acting in concert and pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes.

21. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

22. Plaintiff did not resist arrest.

23. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

24. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

25. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual

defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNREASONABLE FORCE)

26. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

27. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

28. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

29. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

30. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

31. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

32. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

33. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(FAILURE TO INTERVENE)

34. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

35. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

36. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FOURTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

37. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

38. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a

malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

39. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

40. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

41. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

42. Accordingly, Defendants are liable to Plaintiff for unlawful search and seizure under 42 U.S.C. § 1983 and the United States Constitution.

FIFTH CLAIM

(MONELL CLAIM)

43. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

44. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

45. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1)

committing excessive force on persons; (2) wrongfully and falsely accusing persons of resisting arrest; (3) fabricating evidence against innocent persons.

46. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

47. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

48. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

49. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences

of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

50. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in

Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

53. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

HEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and

d. Such other and further relief as this Court may
deem just and proper, including injunctive and
declaratory relief.

Such other and further relief as this Court may deem just and
proper, including injunctive and declaratory relief.

DATED: New York, New York
July 15, 2020

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By:



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